

Court No. - 21

Case :- WRIT - C No. - 2431 of 2017

Petitioner :- Gulab Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohammad Umar Khan

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble V.K. Shukla,J.

Hon'ble Mrs. Sangeeta Chandra,J.

1. Gulab Singh son of Shri Indra Singh is before this Court with request that respondents be directed to disconnect the electricity connection of the petitioner situated at village Kunda Agwanpur, Police Station Parixitgarh, Tehsil Mawana, District Meerut.

2. Under Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005 there is a full-fledged procedure prescribed to get the electricity supply disconnected on temporary basis as well as permanent basis. The accepted position is that till today in consonance with the aforesaid prescribed norms for disconnection of electricity supply, petitioner has not moved any application in prescribed format after completing all requisite formalities and merely writ petition in question has been filed by the petitioner.

3. Once such is the factual situation on which there is no dispute that the petitioner has not proceeded to comply with the legal formalities as provided for getting disconnected the electricity supply in question, we cannot come to the rescue and reprieve of the petitioner and in view of this the prayer made in the writ petition for issuance of a writ, order or direction in the nature of mandamus commanding the respondents to disconnect the electricity connection in question is not accorded by us. But it is made clear that the observation made in this order will not come in the way of petitioner to approach the respondents and move a requisite application for disconnection of his electricity connection as is envisaged under the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005 and we hope and trust that the respondents shall take appropriate decision immediately in accordance with law in case any such application is moved after completing all the requisite formalities and duly complying with the provisions provided for.

4. With this the present writ petition in question is disposed of. The order in question has been passed with due assistance of Shri Ajay Kumar, Advocate, appearing for opposite parties No. 3 and 4.

Order Date :- 18.1.2017

LBV